



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White, Planner II
Subject: PUDC-24-7 / Cheyenne Terrace 2nd Filing / Final Plat
Date: March 25, 2024

Background:

The item for consideration is a *Final Plat*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 03/25/2024
- Public Services Committee 04/02/2024
- Final consideration 04/08/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their March 4, 2024 meeting and voted to recommend the Governing Body approve this application with staff recommended conditions. The applicant has fulfilled these conditions since the Planning Commission meeting and staff no longer requires these conditions be placed on the approval.

The Planning Commission Staff report is attached. The preliminary plat map and final plat map have been updated with corrected maps since the Planning Commission hearing which address the two conditions as outlined in the staff report.

Attachments:

1. Resolution
2. Final Map
3. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR CHEYENNE TERRACE, 2ND FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED EAST OF CONVERSE AVENUE AND SOUTH OF STOREY BOULEVARD)."

WHEREAS, Pinewood Village, LLC has subdivided said land in accordance with the statutes in such cases made and provided;

WHEREAS, Pinewood Village, LLC the owner of the above-described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, blocks, easements, and rights-of-way; and

WHEREAS, the above-described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the Governing Body; and the plat has been duly executed by the Development Office.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Cheyenne Terrace, 2nd Filing, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, when Community Facility Fees have been paid in full.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk



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CITY OF CHEYENNE PLANNING COMMISSION
MARCH 4, 2024
STAFF REPORT

FILE: PUDC-24-7: Cheyenne Terrace, 2nd Filing (Expedited Review)

REQUEST: Subdivide a lot into 76 lots.

LOCATION: South of W 5th St, between Patton Avenue and Snyder Avenue.

APPLICANT: AVI PC

OWNER: Pinewood Village LLC

ZONING: MR Medium-density Residential

PURPOSE: A plat creating 74 cottage lots, 1 common lot and 1 lot for the existing development.

PREPARED BY: Connor White, Planner II



RECOMMENDED MOTION:

Move to **approve** the Cheyenne Terrace, 2nd Filing Expedited Preliminary Plat, advancing the Final Plat to the Governing Body with staff recommended conditions.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.2 Preliminary Plat Approval
- UDC 2.1.3 Final Plat Approval
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne

BACKGROUND:

The applicant is requesting approval of a preliminary plat for roughly 8.87 acres of land. The subject property is developed at the north end with multi-family style development. The proposed plat would subdivide the parcel into 76 lot consisting of 74 cottage lots, 1 common lot and a lot for the existing development. The proposed plat is utilizing the Cottage Lot section of the Unified Development Code (6.6.5). There is a concurrent zone change with this platting action proposing to change the zoning of the proposed cottage lots to NR-2, Neighborhood Residential – Medium Density. The zone change is PUDC-24-17.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	MR (Medium Density Residential)	Vacant / Multi-family
North	Urban Residential	MR	Multi-family
South	Urban Residential	MR	Multi-family
East	Urban Residential	MR	Residential
West	Urban Residential	MR	Residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Preliminary Plat, the Commission must make the following findings required in UDC 2.1.2.d – a detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.1.2.d.1)

On the future land use map found in PlanCheyenne, the subject land and surrounding area has been designated as Urban Residential. The Urban Residential designation encourages a range of more intensive residential uses, although the intent is not to change existing stable neighborhoods. The existing neighborhood has a mix of housing types and densities, and the proposed development fits within the range of the existing neighborhood, while providing a different housing option.

Foundation 1 of PlanCheyenne encourages community growth. This development is in response to market demands and is within the Urban Service Boundary. The development patterns proposed by this plat are compatible with the designations found on the future land use map.

Foundation 7 of PlanCheyenne supports the use of existing infrastructure and timely provision of services (including emergency and education services). This development is proposed in an area which has largely existing infrastructure and limited expansion of infrastructure is necessary.

The application **complies** with this review criterion.

2) The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities. (UDC 2.1.2.d.2)

The proposed development arrangement is proposing to utilize a Cottage Lot style of development. Cottage Lots are considered an effective way to utilize infill parcels and are useful as an alternative form of housing. The development of this site with a Cottage Lot style of development would not adversely affect the surrounding existing development patterns. The proposed development also creates a connection between Patton Avenue and Snyder Avenue.

The application **complies** with this review criterion.

3) The division of land meets the purposes, intent, and all applicable standards in Article 4. (UDC 2.1.2.d.3)

Community Facility Fees (4.2):

For fees based on acreage, the area of the plat is pro-rated to the nearest tenth of an acre. Lands reserved as unbuildable (for right-of-way, detention, parks, remainder lots, etc), are exempt from fees.

Land Acquisition Fee	\$1,610 (\$350 per acre)
Infrastructure Fee	\$1,610 (\$350 per acre)
Total Land Acquisition & Infrastructure Fees	\$3,220

Per UDC Section 4.2.5, Table 4-2, the Land Acquisition & Infrastructure fee are payable at the time of the signing of the final plat.

Per UDC Section 4.2.5, Table 4-2, Enhancement Fees are payable at the issuance of a building permit for each structure.

Residential Enhancement Fee \$400 per dwelling unit

Transportation Network (4.3):

This plat is occurring within an area of the community which has been previously developed. There is limited opportunity to modify the block layout or street network. The proposed plat does provide a private access road through the development which connects Patton Avenue and Snyder Avenue.

Open Space (4.4):

Open space is required at 750sqft per unit or 8% of the gross development area, whichever is less. Lots 2, Block 1 is at least partially proposed as an open space parcel. Based on the

development exhibit proposed with this application, the anticipated open space included with this development will exceed the required minimum.

Required Improvements (4.5):

This plat appears to be able to provide all required utilities to the lots within this development. Easements are provided for BOPU utilities and for other utilities. Some lots will need service lines clarified, but as a Cottage Lot development, a site plan will be required, and service provision may be able to be addressed with the site plan or engineering plan.

Public Safety Fees (4.6):

Public Safety Fees are required at the time of construction of any residential building on any of the proposed lots. Per UDC Section 4.6.3.b, Public Safety Fees are payable at the issuance of a building permit for each structure.

The application **complies** with this review criterion, with conditions.

- 4) **Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned. (UDC 2.1.2.d.4)**

No specific phasing is proposed with this project.

Review criterion **not applicable**.

- 5) **The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts. (UDC 2.1.2.d.5)**

Drainage:

A drainage study was submitted and reviewed. There were no concerns with the study provided.

Traffic:

A traffic study was submitted and reviewed. There were no concerns with the study provided.

The application **complies** with this review criterion.

- 6) **Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements. (UDC 2.1.2.d.6)**

The proposed application occurs in concert with a proposal to zone the land NR-2 Neighborhood Residential – Medium Density. The NR-2 zone is intended for a mix of medium-density residential uses in a compact development pattern (with smaller, walkable blocks). The NR-2 zone allows for Cottage Lot development – a scenario in which multiple single-unit lots have access to a common open area.

All lots proposed for development are buildable lots in this zone district.

The application **complies** with this review criterion.

- 7) All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance. (UDC 2.1.2.d.7)**

Lot 2 is proposed to be a common lot for lots 3-74 and will be maintained by the owners of those lots.

The application **complies** with this review criterion.

- 8) The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property. (UDC 2.1.2.d.8)**

This plat will not create any undue influence on existing or potential development.

The application **complies** with this review criterion.

- 9) The application is not harmful to the public health, safety, and welfare. (UDC 2.1.2.d.9)**

City staff is satisfied that this proposed plat would not adversely affect the public health, safety, or general welfare.

The application **complies** with this review criterion.

- 10) Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description. (UDC 2.1.2.d.10)**

Remainder lots are not proposed with this plat.

The application **complies** with this review criterion.

- 11) The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan. (UDC 2.1.3.d.1)**

The Final Plat submitted with the application is substantially similar to the Preliminary Plat submitted.

The application **complies** with this review criterion.

12) The application meets any conditions or modifications of the approved preliminary plat. (UDC 2.1.3.d.2)

Through the review process and application of the Preliminary Plat, Staff recommends minor corrections as conditions to the plat. These corrections should be resolved prior to the final plat being recorded.

The application **complies** with this review criterion, with conditions.

13) The application meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.3.d.3)

As a concurrent Preliminary and Final Plat application, this Final Plat review criterion is covered by the equivalent Preliminary Plat review criterion (subsection 3 above).

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Minor clerical corrections.
2. Utility and easement correction.

CONCLUSION:

Staff analysis is that the application meets the review criteria and therefore recommends approval of the expedited plat application as submitted by the applicant with conditions.

ALTERNATIVES:

1. Recommend approval of the expedited preliminary plat, forwarding the Final Plat to the Governing Body.
2. Recommend approval of the preliminary plat with conditions and that a final plat addressing the conditions of approval be prepared and presented to the Governing Body.
3. Recommend approval of the preliminary plat as submitted by the applicant and forward the preliminary plat to the Governing Body.
4. Recommend approval of the preliminary plat subject to staff's recommended conditions and forward the preliminary plat to the Governing Body.
5. Recommend denial of the preliminary plat based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
6. Postpone the project until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

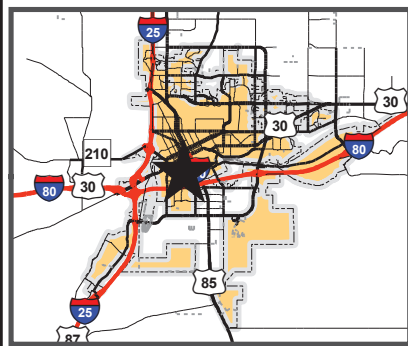
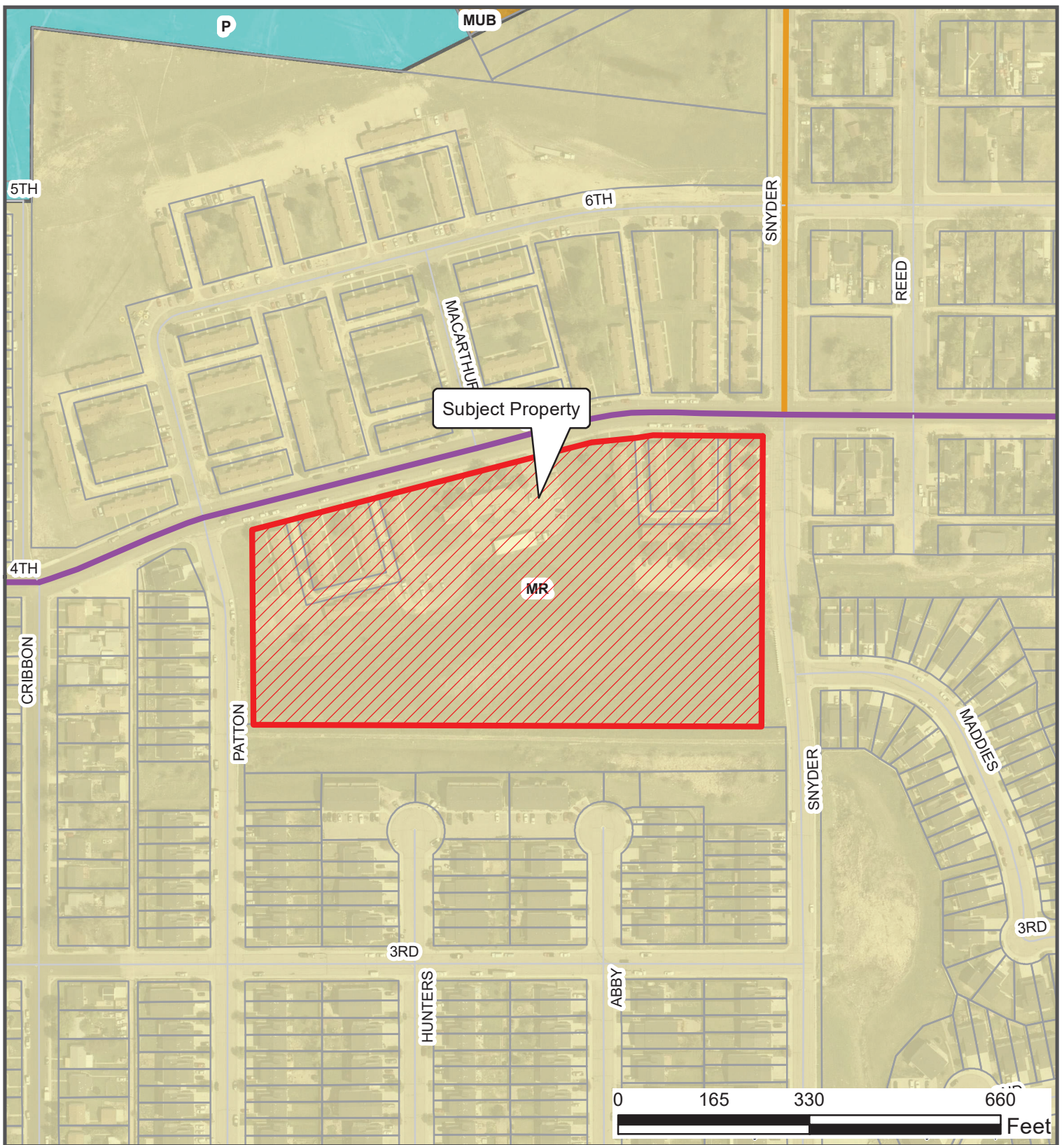
STAFF RECOMMENDATION:

Staff recommends approval of the expedited Preliminary Plat, advancing the Final Plat to the Governing Body with the following conditions:

1. Prior recording:
 - a. Remove reference to right-of-way or ROW for the private access easement.
 - b. Add a 20-foot BOPU easement between Lots 33-38 and 45-51 extending from the BOPU easement in Calton Avenue to the north property line of Lot 2.

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Master Application Form
4. Preliminary Plat
5. Final Plat

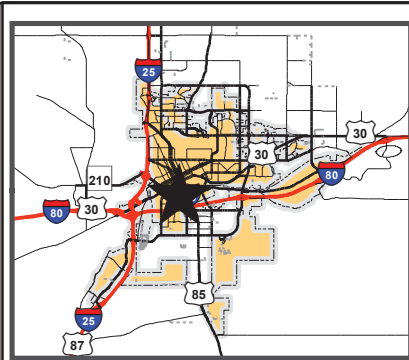
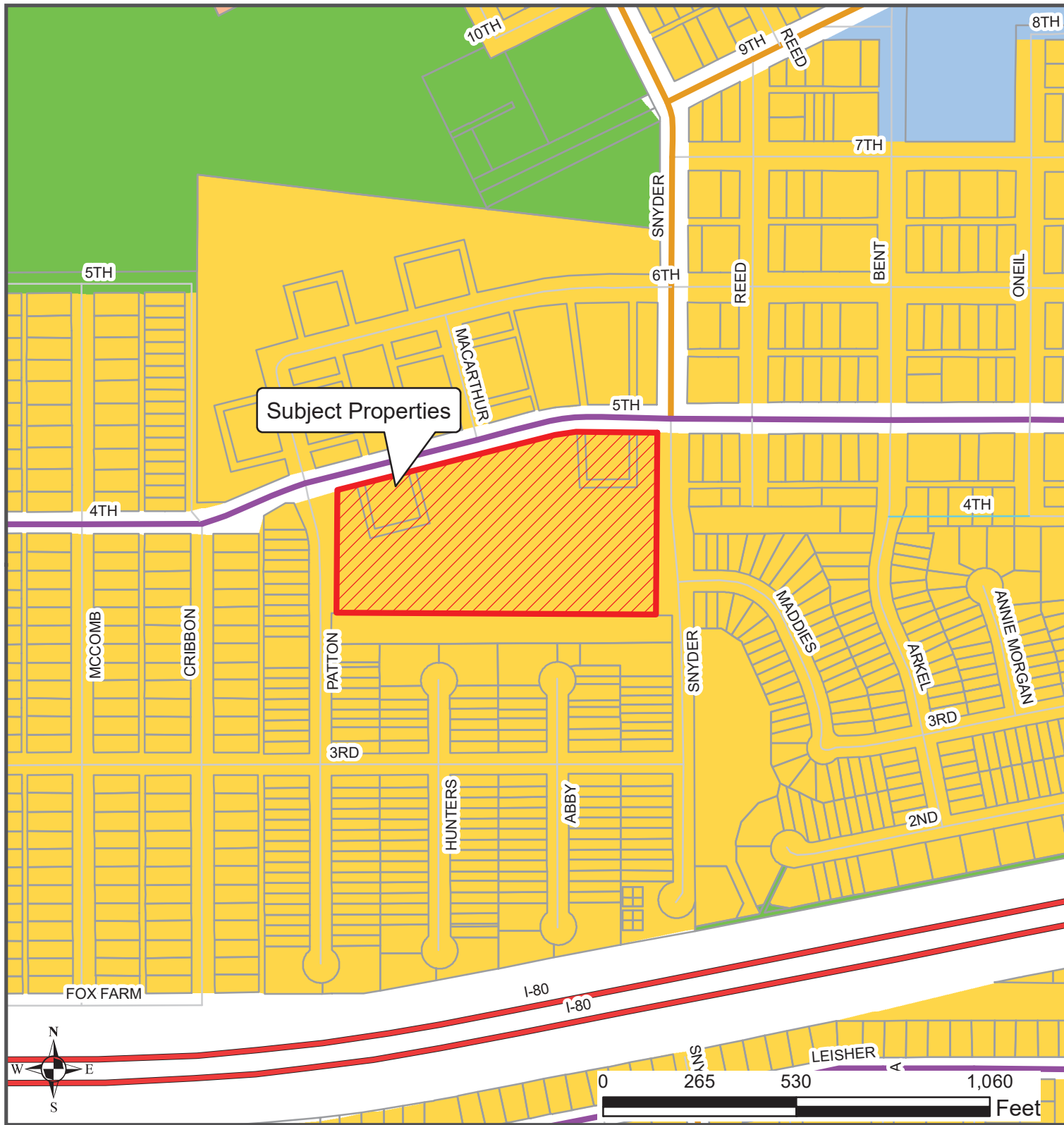


Attachment 1: Zoning Map PUDC-24-7

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map PUDC-24-7

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



Cheyenne, WY

2/26/2024

PUDC-24-7

Plat - Expedited

Status: Active

Submitted On: 1/17/2024

Primary Location

0

,

Owner**Applicant**

AVI PC

307-637-6017

avi@avipc.com

 1103 Old Town Lane #101
Cheyenne, WY 82009

Application Information

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

An expedited review is when both a preliminary and final plat are submitted to the Planning Commission together. To be eligible for expedited review the preliminary plat shall contain no significant planning, design, and engineering issues. Upon determination by staff, the applicant may submit a preliminary and final plat to the Planning Commission.*



I acknowledge the that Expedited status is not guaranteed.*

**Written Statement***

We propose the replat of a portion of Cheyenne Terrace to provide a cottage lot project.

Project Name*

Cheyenne Terrace 2nd Filing

Plat Title*

Cheyenne Terrace 2nd Filing

Current Subdivision*

Cheyenne Terrace

Project area (acres)*

8.87

Proposed Lots*

77

Pre-application Meeting Date

—

Park Fees are due at time of signing of the final plat mylar (see UDC 4.2.5). I acknowledge that this plat may be required to pay plat-level Park Fees.*



Public Improvements are required with platting  actions. Please select the option that best demonstrates your intent for the public streets and other infrastructure adjacent to or within the plat boundary.*

Owner(s) (or developers) behind the plat application will construct the needed infrastructure.

Review Criteria

The following review criteria are found in the UDC regarding a Preliminary Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.1.2.d.1).*



The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities (2.1.2.d.2).*



The division of land meets the purposes, intent, and all applicable standards in Article 4 (2.1.2.d.3).*



Any phasing proposed in the application is clearly indicated and demonstrates a logical and wellplanned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned (2.1.2.d.4).*



The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts (2.1.2.d.5).*



Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements (2.1.2.d.6).*



All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance (2.1.2.d.7).*



The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property (2.1.2.d.8).*



The application is not harmful to the public health, safety, and welfare (2.1.2.d.9).*



Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description (2.1.2.d.10).*



The following review criteria are found in the UDC regarding a Final Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan (2.1.3.d.1).*



The application meets any conditions or modifications of the approved preliminary plat (2.1.3.d.2). (Not applicable at time of application for an expedited plat)

The application meets the purposes, intent, and applicable standards of Article 4 (2.1.3.d.3).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*

✓ Christopher Thomas Annala
Jan 17, 2024

